

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 26, 2018

Honorable Ronal T. Lisk
Judge of the Superior Court
County of Santa Clara
191 North First Street
San Jose, CA 95113

Re: Martinez, Jorge Antonio
CDC No.: V91209
Case No.: CC585260
Date of Sentence: July 29, 2005

Dear Honorable Ronal T. Lisk:

The purpose of this letter is to provide the court with authority to resentence Jorge Antonio Martinez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Martinez was sentenced in 2005, and was convicted of section 245, subdivision (a)(2), Assault with a firearm. The trial court sentenced inmate Martinez on July 29, 2005. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to inmate Martinez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Martinez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
First Amended Felony Complaint

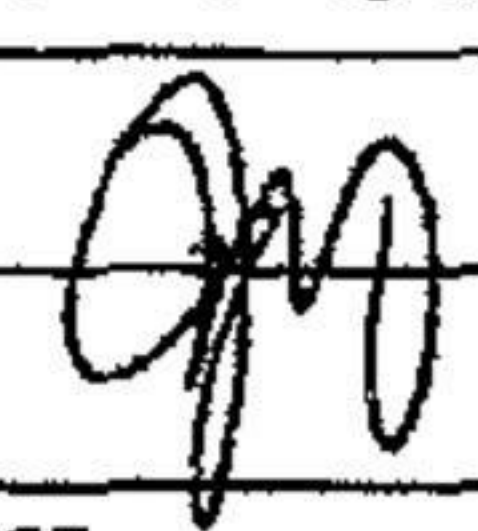
cc: Honorable Patricia M. Lucas, Santa Clara County Presiding Judge
Santa Clara District Attorney
Public Defender

V91209

V91209

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[not valid without completed page two of CR-290 attached]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA						
BRANCH OR JUDICIAL DISTRICT: HOJ						
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Jorge Antonio Martinez		DOB: 07-03-86				CC585260 -A
AKA: CH#:		-B INPUT OBIS				-C 
BOOKING INFORMATION: PFN: DVF155 CEN: 05014084 ☐ NOT PRESENT			☐ AMENDED ABSTRACT -D			
DATE OF HEARING 07-29-2005		DEPT. NO. 24		JUDGE Hon. Ronal T. Lisk		
CLERK M. Fortuna		REPORTER D. Waller		PROBATION NUMBER OR PROBATION OFFICER L. Robinson		
COUNSEL FOR PEOPLE A. Huntley ☐ State Attorney General			COUNSEL FOR DEFENDANT P. Ebrahimi ☒ APPTD.			

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 (number of pages attached)

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (Month/Date/Year)	Convicted by			Term (L, M, U)	Concurrent	Consecutive 1/3 Violent	Consecutive 1/3 NON Violent	Consecutive Full Term	Incomplete sentence (refer to item 5)	PCSS4(STAY)	Principal or Consecutive Time Imposed	
						JURY	COURT	PLEA								YRS.	MOS.
1	PC	245(a)(2)	Assault with a firearm	2005	06-03-2005			X	U							4	0
2	PC	245(a)(2)	Assault with a firearm	2005	06-03-2005			X	M			X				1	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENTS.

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
1	PC12022.5 (a)	10	PC12022.7(a)	3	PC186.22(b)(1)(c)	10			23 0
2	PC12022.5(a)	1.4	PC186.22(b)(1)(c)	**S					1 4

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTION OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENTS.

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME excluding county jail term: **29** **4**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: **Jorge Antonio Martínez**

CC585260

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. Restitution Fines(s):

Case A: \$200 per PC 1202.4(b) forthwith per PC 2085.5; \$200 per PC 1205.45 suspended unless parole is revoked.

Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1205.45 suspended unless parole is revoked.

Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1205.45 suspended unless parole is revoked.

Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1205.45 suspended unless parole is revoked.

b. Restitution per PC 1202.4(f):

Case A: \$TBD ☒ Amount to be determined to: ☐ Restitution Fund ☐ victim(s) _____

Case B: \$ ☐ Amount to be determined to: ☐ Restitution Fund ☐ victim(s) _____

Case C: \$ ☐ Amount to be determined to: ☐ Restitution Fund ☐ victim(s) _____

Case D: \$ ☐ Amount to be determined to: ☐ Restitution Fund ☐ victim(s) _____

List additional victims if known and specify case (A, B, C or D): _____

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or: _____ days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS

Case B: \$ per PC 1202.5. \$ per VC 23550 or: _____ days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS

Case C: \$ per PC 1202.5. \$ per VC 23550 or: _____ days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS

Case D: \$ per PC 1202.5. \$ per VC 23550 or: _____ days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS

d. Lab Fee and Drug Program Fee:

Case A: Lab Fee: \$ per HS 11372.5(a) for counts _____ ☐ Drug Program Fee of \$150 + PA _____ per HS 11372.7(a).

Case B: Lab Fee: \$ per HS 11372.5(a) for counts _____ ☐ Drug Program Fee of \$150 + PA _____ per HS 11372.7(a).

Case C: Lab Fee: \$ per HS 11372.5(a) for counts _____ ☐ Drug Program Fee of \$150 + PA _____ per HS 11372.7(a).

Case D: Lab Fee: \$ per HS 11372.5(a) for counts _____ ☐ Drug Program Fee of \$150 + PA _____ per HS 11372.7(a).

10. TESTING

a. ☐ AIDS pursuant to PC 1202.1 b. ☒ DNA pursuant to PC 296 c. ☐ other (specify): _____

11. Other orders (specify): Advised of 3 yrs parole. Dismissal Ct 3&4. Register PC186.30. PC12021 ordered. Probation denied. SECA \$20.

**Punishment stricken pursuant to PC1385.

12. EXECUTION OF SENTENCE IMPOSED

a. ☒ at initial sentencing hearing.

b. ☐ at resentencing per decision on appeal.

c. ☐ after revocation of probation.

d. ☐ at resentencing per recall of commitment. (PC 1170(d)).

e. ☐ other (specify): _____

13. CREDIT FOR TIME SERVED

Case A: Total Credits: 162 Actual: 141 Local Conduct: 21 ☐ PC 4019 ☒ PC 2933.1

Case B: Total Credits: _____ Actual: _____ Local Conduct: _____ ☐ PC 4019 ☐ PC 2933.1

Case C: Total Credits: _____ Actual: _____ Local Conduct: _____ ☐ PC 4019 ☐ PC 2933.1

Case D: Total Credits: _____ Actual: _____ Local Conduct: _____ ☐ PC 4019 ☐ PC 2933.1

DATE SENTENCE PRONOUNCED:

07-29-2005

SERVED TIME IN STATE INSTITUTION:

☐ Dept. of Mental Health

☐ CA Dept. of Corrections

☐ CA Rehabilitation Ctr

14. Defendant is remanded to the custody of the Sheriff: ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to: ☒ reception center designated by Director, California Department of Corrections.

☐ Other: _____

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this case.

DEPUTY'S SIGNATURE

Kristine Ngo

DATE

08-01-2005

